

24STCV05932 24STCV05932

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-21

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Case Number: 24STCV05932 Hearing Date: August 21, 2026 Dept: 406

5379 WHITTIER BOULEVARD

LLC,

Plaintiff,

v.

YOLANDA PADILLA, et

al.,

Defendants.

Case No.: 24STCV05932

Hearing Date: August 21, 2026

[TENTATIVE]

order RE:

defendants yolanda padilla's and

johnathan flores' motion for summary adjudication

BACKGROUND

On March 8, 2024, Plaintiff 5379

Whittier Boulevard LLC (Whittier) filed this action against Defendants Yolanda

Padilla (Padilla) and Johnathan Flores (Flores), asserting causes of action for

(1) trespass, (2) negligent interference with prospective economic advantage,

(3) intentional interference with prospective economic advantage, and (4) declaratory and injunctive relief.

Whittier owns a property adjoining that of Padilla and Flores. The dispute arises from Whittier's attempt to conduct renovations on a part of its property close to the boundary line between the two properties. After Padilla and Flores declined Whittier access to their property to conduct the renovations, Whittier began the renovations supposedly without encroaching onto the other property. However, Padilla and Flores allegedly engaged in a campaign of harassment to prevent the renovations from proceeding, based on the false assertion that the work encroached onto their property. This allegedly included trespassing onto Whittier's property and engaging in physical violence.

On April 3, 2024, Padilla and Flores filed a cross-complaint against Whittier, Logan Altman, Duval Campbell, Armed Elite Services, Raul Alvarez Ramirez, and Caribe Construction. Padilla and Flores filed the operative First Amended Cross-Complaint on February 10, 2026. The FACC adds Tekoa E. Burdine as a cross-defendant. The FACC asserts claims for (1) assault and battery, (2) terrorist threats, (3) trespass, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) negligent retention. Padilla and Flores allege that Whittier's renovations encroached onto their property and that the construction workers refused to leave. Whittier hired a security guard, Campbell, who allegedly helped the workers trespass onto the other property and allegedly assaulted Padilla when she attempted to stop him.

On May 21, 2026, Defendants Padilla and Flores filed the instant for summary adjudication of the second, third, and fourth causes of action in the complaint. Plaintiff Whittier filed an opposition on July 31, 2026. Defendants filed a reply on August 10, 2026.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence

submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce "substantial responsive evidence." (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

DISCUSSION

I.

Interference with Prospective Economic Advantage

The elements of a claim for intentional interference with prospective economic advantage are: (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant. (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1153.) Negligent interference occurs when the defendant interrupts the relationship by failing to act with due care. (Venhaus v. Shultz (2007) 155 Cal.App.4th 1072, 1078.)

An action for interference with prospective economic advantage "protects the expectation that the relationship eventually will yield the desired benefit, not necessarily the more speculative expectation that a potentially beneficial relationship will eventually arise."

(Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 524.) In other words, there must be an existing relationship, not merely a potential relationship. (Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc. (2017) 2 Cal.5th 505, 516.)

Here, Plaintiff's interference claims are based on the allegation that "Plaintiff had an economic relationship with potential lessees of the ADU [Accessory Dwelling Unit] that had the probability of yielding future economic benefits to Plaintiff." (Compl. ¶¶ 29, 35.) Plaintiff alleges that Defendants' actions obstructed and delayed the renovations of the ADU, causing Plaintiff to lose the benefit of the economic relationships. (Id., ¶¶ 32, 37.)

Defendants argue that Plaintiff had no existing economic relationships with tenants. The Court agrees. Specifically, the allegations are defective outright because they refer to "potential lessees," not actual lessees. (See Compl. ¶¶ 29, 35; see also American Airlines, Inc. v. County of San Mateo (1996) 12 Cal.4th 1110, 1117 ["A defendant's motion for summary judgment necessarily includes a test of the sufficiency of the complaint"].) Potential relationships do not satisfy the relationship element. Therefore, Defendants have met their initial burden of showing that Plaintiff cannot satisfy an essential element of the claims.

In opposition, Plaintiff does not identify any relationship with a lessee. Instead, Plaintiff argues it has adequately alleged that "Defendants knew or should have known that their actions would impede Plaintiff's ability to rent units." (Opp. 4:26-28.) However, the interference tort does not create freestanding liability for any act that impedes business operations such as renting. Rather, there must be identifiable, existing relationships with third parties. None of the allegations cited in the opposition demonstrate existing relationships. (See Compl. ¶¶ 20, 30, 32, 36, 37.) In fact, these allegations simply confirm the defect by referencing "potential lessees." (Ibid.) Plaintiff does not otherwise present any evidence of existing relationships with lessees.

Plaintiff also refers to an unpled "buyer counteroffer for the sale price of \$1,900,000, expressly conditioned on ADU completion at close of escrow." (Opp. 5:1-3.) First, the pleadings delineate the issues on summary judgment. (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67.) Therefore, "summary judgment cannot be denied on a ground

not raised by the pleadings.” (Bostrom v. County of San Bernardino (1995) 35 Cal.App.4th 1654, 1663.) For this reason alone, Plaintiff’s counteroffer theory fails to raise a triable issue.

Moreover, by Plaintiff’s own characterization, Defendants could not have known of or interfered with the buyer counteroffer. Specifically, Plaintiff claims that it “accepted a buyer counteroffer on or about May 1, 2025.” (Opp. 5:26-27.) However, the alleged interference occurred in February 2024. (Compl. ¶¶ 1, 10, 12, 16, 22.) Defendants could not have known of or interfered with a buyer counteroffer that occurred after their alleged acts. This theory runs into the same problem as the rental theory—there was no existing economic relationship at the time of the alleged interference. Therefore, even if Plaintiff had pled the counteroffer theory, it would fail on the merits.

In sum, the interference claims fail as a matter of law for failure to satisfy the essential element of existing economic relationship.

II.

Declaratory and Injunctive Relief

“Any person . . . who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises.” (Code Civ. Proc., § 1060.)

Here, Plaintiff alleges that there is a controversy over whether “Defendants must reasonably allow Plaintiff to complete the necessary repairs to the detached building” and whether “Defendants may not engage in actions that unreasonably prevent Plaintiff from completing the necessary repairs.” (Compl. ¶¶ 41-43.) Plaintiff seeks injunctive relief precluding Defendants from interfering. (Ibid.)

Defendants argue that this cause of action is moot because the configuration of the building has changed since the time of the alleged wrongful conduct in February 2024. (Mtn. 17:1-8.)

Specifically, “the City required Plaintiff to set the structure back five feet and rebuild accordingly.” (Ibid.) But that does not negate the controversy as alleged in the complaint. The fact that the structure has been set back five feet does not foreclose the possibility of Defendants interfering with the construction. Therefore, a present controversy remains.

CONCLUSION

Defendants’ motion for summary adjudication is GRANTED as to the second and third causes of action and DENIED as to the fourth cause of action.